

**SUPERSEDED — PRIOR-YEAR AGREEMENT (2024). Amended and restated  
by the current-period Agreement. NOT OPERATIVE.**

**SUPERSEDED  
NOT OPERATIVE**

Halyk Bank of Kazakhstan JSC

CONFIDENTIAL · EXECUTION COPY · LOAN REFERENCE  
ACC-7604

# CREDIT AGREEMENT

Senior Secured Credit Facility

Dated as of 1 January 2024

THIS CREDIT AGREEMENT (this "Agreement") is made and entered into as of 1 January 2024, by and between **Altai Metals Holding B.V.**, a private limited liability company organised under the laws of the Netherlands (the "Borrower"), maintaining account ACC-7604 with the Lender, and **Halyk Bank of Kazakhstan JSC**, as lender (the "Lender").

**WHEREAS**, the Borrower has requested that the Lender extend certain credit facilities to the Borrower; and

**WHEREAS**, the Lender is willing to extend such facilities subject to the Borrower's observance of the financial covenants set forth herein throughout the Covenant Period, being 2024-01-01 to 2024-12-31;

**NOW, THEREFORE**, in consideration of the mutual covenants and agreements herein contained, and for other good and valuable consideration, the parties hereto agree as follows:

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## **Article I — Definitions and Interpretation**

Capitalised terms used but not otherwise defined herein have the meanings customarily ascribed to them under generally accepted accounting principles, consistently applied. References to the “Covenant Period” are to the period specified in the recitals above. In this Agreement, the singular includes the plural, and any reference to a document or agreement is to that document or agreement as amended, restated, supplemented or otherwise modified from time to time.

"Business Day" means a day (other than a Saturday or Sunday) on which banks are open for general business in the jurisdiction of the Lender. "Interest Period" means each calendar quarter, and for the first such period the period from the Drawdown Date to the end of the calendar quarter in which it falls. "Drawdown Date" means the date on which the Loan is credited to the Borrower's account identified in the preamble.

"Material Adverse Change" means any change that, in the reasonable opinion of the Lender, materially impairs the Borrower's ability to perform its payment obligations under this Agreement, provided that a single claim or proceeding for less than \$600,000.00 shall not of itself constitute such a change. "Material Contract" means any contract with annual turnover in excess of \$1,350,000.00.

"Security" means the aggregate of the pledges, guarantees and other assurances granted in favour of the Lender. "Encumbrance" means any mortgage, charge, pledge, lien, assignment by way of security or other preferential arrangement over any asset of the Borrower, other than an encumbrance expressly permitted by this Agreement.

In this Agreement, the singular includes the plural and vice versa; a reference to a statute is a reference to that statute as amended from time to time; headings are for convenience only and do not affect construction; a period expressed in days means calendar days unless expressly stated otherwise; and where a sum is expressed in both figures and words, the words prevail.

## **Article II — The Credit Facility**

Subject to the terms and conditions of this Agreement, the Lender has agreed to make available to the Borrower the senior secured credit facilities described herein (the “Facilities”). The Borrower shall apply the proceeds of the Facilities solely for its general

corporate purposes and for such other purposes as are not prohibited hereunder. All amounts outstanding under the Facilities shall bear interest and be repaid in accordance with the terms separately agreed between the parties.

The Loan shall be advanced in a single amount or in tranches against the Borrower's written request delivered not less than 9 days before the proposed drawdown date. Each request is irrevocable and shall state the amount requested, the proposed drawdown date, and confirm that the representations in the article of this Agreement concerning representations and warranties remain true as at the date of the request.

The Lender's obligation to advance is conditional upon receipt of: (a) certified corporate authorisations approving this Agreement; (b) copies of the Borrower's constitutional documents and certificate of registration; (c) evidence of the authority of each signatory; (d) evidence that the Security has been perfected; and (e) the Borrower's financial statements for the most recently completed reporting period.

The Borrower shall pay the Lender an arrangement fee of \$575,000.00 on the Drawdown Date and an annual agency fee of \$20,000.00. A commitment fee accrues on the undrawn portion of the facility at 0.40% per annum, together with a utilisation fee of 0.10% per annum on the undrawn balance where less than half of the facility is drawn. Fees are non-refundable and are not applied in reduction of principal.

Any amount not paid when due bears interest at a rate exceeding the applicable rate by 4.75% per annum from the day following the due date to the date of actual payment. Charging default interest is without prejudice to any other remedy of the Lender.

### **Article III — Representations and Warranties**

The Borrower represents and warrants to the Lender that it is duly organised and validly existing under the laws of the Netherlands, that it has the corporate power and authority to enter into and perform this Agreement, and that the financial statements and records delivered to the Lender present fairly, in all material respects, its financial condition as at the dates indicated. Each such representation is deemed repeated on each date on which compliance with the financial covenants is tested.

The Borrower further represents that the execution and performance of this Agreement do not conflict with its constitutional documents, with applicable law or with the terms of any other obligation binding on it; that all necessary consents have been obtained; and that this Agreement constitutes valid and binding obligations enforceable in accordance with its terms.

The Borrower represents that no litigation, arbitration or administrative proceeding involving claims in excess of \$600,000.00 is current or, to its knowledge, threatened against it, and that it has no overdue tax or other statutory liability other than amounts contested in good faith and adequately provisioned.

Each representation in this article is given on the date of this Agreement and is deemed repeated on the Drawdown Date, on the first day of each Interest Period and on each date on which compliance with the financial covenants is tested, by reference to the facts then subsisting.

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#### **Article IV — Affirmative Covenants**

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The Borrower shall maintain its books and records in accordance with generally accepted accounting principles, shall permit the Lender and its representatives to inspect such books and records upon reasonable notice, and shall deliver to the Lender such financial statements, compliance certificates and other information as the Lender may reasonably request. The Borrower shall preserve its corporate existence and comply in all material respects with all applicable laws and regulations.

The Borrower shall deliver to the Lender: interim financial statements within 57 days after the end of each financial quarter; audited annual financial statements within 114 days after the end of each financial year; a compliance certificate together with the relevant statements; and any other information within 9 days of a reasonable written request.

The Borrower shall notify the Lender promptly, and in any event within 9 days, of: any event of default or any event which with the passage of time or the giving of notice would become one; any claim against the Borrower exceeding \$600,000.00; any change in its shareholders or governing bodies; and any Material Adverse Change.

The Borrower shall retain its accounting records for not less than 6 years and shall permit the Lender, its auditors and other authorised representatives access to those records and to its premises during business hours on not less than 9 days' notice. The Lender bears the cost of one such inspection per calendar year; the Borrower bears the cost of any further inspection and of any inspection carried out after an event of default.

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#### **Article V — Financial Covenants**

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**Section 5.1 Springing Limitation on Transfers to Unrestricted Subsidiaries.** The Borrower, Altai Metals Holding B.V., shall not, at any time during the period from 2024-01-01 to 2024-12-31 when its Net Leverage Ratio exceeds 3.25x, sell, transfer, contribute or otherwise dispose of any asset constituting Collateral to any Unrestricted Subsidiary where the aggregate value of all such transfers exceeds \$500,000.00. For purposes of this covenant, an Unrestricted Subsidiary means any subsidiary designated as unrestricted and accordingly falling outside the collateral perimeter of this Agreement, as recorded in the Borrower's customer due-diligence records; a transfer to a Restricted Subsidiary shall not be counted. This restriction is suspended at any time when the Net Leverage Ratio does not

exceed 3.25x, and for the avoidance of doubt the restriction may be in effect notwithstanding compliance with the maximum Net Leverage Ratio covenant elsewhere in this Article.

**Section 5.2 Maximum Net Debt Leverage.** The Borrower, Altai Metals Holding B.V., shall not permit its Net Leverage Ratio to exceed 3.00x as measured over the period from 2024-01-01 to 2024-12-31. For purposes of this covenant, the Net Leverage Ratio means Net Debt divided by EBITDA, where Net Debt means the aggregate principal amount of Financial Indebtedness drawn during the period less all scheduled principal repayments made in that period, and EBITDA means Revenue less Operating Expenses, in each case determined on the basis of the Borrower's audited accounts and converted into United States dollars at the exchange rates the Borrower's auditors adopt for covenant-compliance purposes.

**Section 5.3 Maximum Quarterly Revenue Concentration.** The Borrower, Altai Metals Holding B.V., shall not permit Revenue recognised in any single fiscal quarter falling within the period from 2024-01-01 to 2024-12-31 to exceed 0.30x, expressed as a multiple of Revenue for that period taken as a whole. For purposes of this covenant, Revenue shall be attributed to the fiscal quarter in which it is recognised and shall be converted into United States dollars at the exchange rates the Borrower's auditors adopt for covenant-compliance purposes, it being acknowledged that this covenant is directed at concentration of trading in any one quarter rather than at the absolute level of Revenue.

## Article VI — Negative Undertakings

The Borrower shall not, without the Lender's prior written consent, incur financial indebtedness other than: indebtedness owed to the Lender; trade payables incurred in the ordinary course of business; and other indebtedness not exceeding \$9,000,000.00 in aggregate at any time.

The Borrower shall not create or permit to subsist any Encumbrance over its assets other than: encumbrances arising by operation of law in the ordinary course; encumbrances subsisting at the date of this Agreement and disclosed to the Lender; and encumbrances in favour of the Lender.

The Borrower shall not dispose of fixed or other non-current assets where the aggregate value disposed of in any financial year exceeds \$5,700,000.00, other than disposals of obsolete or worn assets replaced by assets of equivalent value and sales of finished goods and inventory in the ordinary course.

The Borrower shall not merge, incorporate subsidiaries, acquire participations in other entities, or grant loans, suretyships or guarantees to third parties where the relevant transaction, or the aggregate of such transactions in any financial year, exceeds \$1,350,000.00.

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## **Article VII — Repayment, Prepayment and Payment Mechanics**

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Principal is repaid in accordance with the repayment schedule forming part of this Agreement. Payments are made not later than the last Business Day of the relevant Interest Period to the account notified by the Lender. A payment received after 16:00 local time is treated as received on the following Business Day.

The Borrower may prepay the Loan in whole or in part on not less than 9 days' notice. Partial prepayment shall be in a minimum amount of \$4,400,000.00 and in integral multiples of that amount. A prepayment notice is irrevocable.

Prepayment within the first twelve months after the Drawdown Date carries a compensation payment of 1.50% of the amount prepaid. No compensation is payable where the prepayment is funded by the Lender or is made at the Lender's request.

Sums received are applied in the following order: the Lender's enforcement costs; default interest and penalties; accrued interest; principal. Interest accrues on the basis of the actual number of days elapsed and a year of three hundred and sixty days.

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## **Article VIII — Taxes, Costs and Increased Costs**

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All payments are made free of any deduction or withholding unless required by law. Where a withholding is required, the Borrower shall gross up the payment so that the Lender receives the amount it would have received absent the withholding, and shall within 9 days deliver evidence of the payment of the withheld amount to the relevant authority.

The Borrower shall reimburse the Lender's documented costs of preparing, entering into, amending and enforcing this Agreement, including valuation, insurance, notarial and registration costs relating to the Security, provided that costs exceeding \$1,350,000.00 are agreed with the Borrower in advance.

If a change in regulatory requirements, including capital adequacy or provisioning requirements, increases the cost to the Lender of making or maintaining the Loan, the Borrower shall on demand compensate the Lender for that increase. The demand shall include a calculation and shall be made within 57 days of the Lender becoming aware of the increase.

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## **Article IX — Security and Insurance**

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The Borrower's obligations are secured by pledges over assets identified in separate security documents, the aggregate appraised value of which is not less than \$56,500,000.00 as at the date of the relevant security document.

Where the value of the secured assets falls by more than one tenth, the Borrower shall within 30 days provide additional security or prepay principal in the amount required to restore the agreed cover.

The Borrower shall insure the secured assets against loss and damage for a sum insured of not less than \$28,000,000.00 with an insurer approved by the Lender, and shall maintain third-party liability cover of not less than \$4,250,000.00. The Lender shall be named as loss payee to the extent of the outstanding obligations.

Copies of policies and evidence of premium payment shall be delivered within 27 days of issue or renewal. If the Borrower fails to insure, the Lender may effect the insurance itself and recover the cost within 30 days of demand.

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## **Article X — Capital Expenditure and Distributions**

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The Borrower may incur capital expenditure within its approved investment budget. Capital expenditure outside that budget is permitted provided the aggregate in any financial year does not exceed \$5,550,000.00. This article neither modifies nor waives the financial covenants set out in the relevant article of this Agreement.

The Borrower shall not declare or pay dividends, repurchase shares or participations, or advance loans to its shareholders or employees, where after giving effect to the transaction any financial covenant would be breached or where an event of default is then continuing.

The Borrower shall route the substantial part of its operating receipts through accounts held with the Lender, and shall give not less than 9 days' notice of any change to its principal banking arrangements.

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## **Article XI — Events of Default and Remedies**

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Each of the following is an event of default: (a) non-payment of any sum due, unless remedied within 9 Business Days where caused solely by technical reasons outside the Borrower's control and notified to the Lender; (b) any representation proving materially incorrect when made or repeated; (c) breach of any financial covenant; (d) breach of any other obligation not remedied within 30 days of written notice.

It is also an event of default if enforcement is levied for an amount exceeding \$600,000.00 and is not discharged or stayed within 30 days, if secured assets are lost or materially impaired without equivalent replacement, or if the Borrower becomes insolvent or enters rehabilitation or bankruptcy proceedings.

While an event of default is continuing the Lender may suspend further advances, declare all sums immediately due, enforce the Security and exercise any other right available to it. Failure or delay in exercising a right is not a waiver of it.

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## **Article XII — Assignment, Confidentiality and Compliance**

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The Borrower may not assign its rights or transfer its obligations under this Agreement without the Lender's prior written consent. The Lender may assign its rights to another financial institution on notice to the Borrower within 9 days of the assignment; the Borrower's consent is not required, and no assignment shall increase the Borrower's costs.

Each party shall keep confidential information obtained in connection with this Agreement, save for disclosure required by law or made to auditors, legal advisers and regulatory authorities. The confidentiality obligations survive for 6 years after the obligations under this Agreement are discharged.

The Borrower represents that neither it nor its officers or shareholders has offered or accepted any improper advantage in connection with this Agreement, that it is not subject to financial sanctions measures, and that the proceeds of the Loan will not be applied to any activity subject to such measures. It shall notify the Lender of any change in these circumstances within 9 days.

The Borrower shall on request provide details of its beneficial owners and ownership structure to the extent required for the Lender's customer due diligence. Failure to provide those details within 30 days entitles the Lender to suspend operations on the Borrower's accounts.

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## **Article XIII — Notices, Set-Off and Force Majeure**

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Notices shall be in writing and sent to the addresses stated in this Agreement, and are deemed received: on delivery, if delivered by hand; on the fifth Business Day after posting, if sent by registered post; and on the Business Day after transmission, if sent by email. A party shall notify any change of its details within 9 days.

The Lender may set off any sum due to it under this Agreement against any balance standing to the credit of the Borrower on any account held with the Lender, on notice to the Borrower, converting currencies at the Lender's own rate where necessary.

Neither party is liable for failure to perform caused by force majeure, provided the other party is notified within 9 days with supporting evidence. If such circumstances continue for more than 114 days, either party may require the terms of this Agreement to be reviewed.



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## Article XIV — Amendment, Termination and Records

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Any amendment to this Agreement shall be made by written supplemental agreement signed by authorised representatives of both parties and forming an integral part of this Agreement.

A waiver is effective only if given in writing and only in respect of the circumstances for which it is given. Delay in exercising a right, or partial exercise of it, is not a waiver and does not prevent further exercise.

This Agreement continues until all obligations have been discharged in full. Termination does not discharge the Borrower's obligations to pay accrued sums, to reimburse the Lender's costs, or to preserve the secured assets until the relevant encumbrances are released.

The parties shall retain originals of this Agreement and of each supplemental agreement for not less than 6 years, and shall reconcile accounts at least annually. A reconciliation statement signed by authorised representatives is evidence of the amount outstanding at the date stated in it; objections shall be raised within 30 days of receipt.

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## Article XV — General Provisions

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**Section 15.1 Governing Law.** This Agreement shall be construed in accordance with the laws of the State of the Netherlands.

**Section 15.2 Assignment.** Neither party may assign or transfer any of its rights or obligations under this Agreement without the prior written consent of the other party. Any assignment not in accordance with this Agreement shall be void.

**Section 15.3 Audit and Inspection.** The Borrower shall maintain complete and accurate books and records relating to the Facilities and shall permit the Lender and its representatives to audit and inspect such books and records upon reasonable prior notice. Inspections shall be conducted at a reasonable time and during normal hours of operation.

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be duly executed and delivered by their respective authorised officers as of the date first written above.

For and on behalf of the Borrower  
**Altai Metals Holding B.V.**

For and on behalf of the Lender  
**Halyk Bank of Kazakhstan JSC**



By: \_\_\_\_\_

Name: Gulnara Seiitkali

Title: Chairman of the Management Board



Account ACC-7604



By: \_\_\_\_\_

Name: Nurzhan Ospanov

Title: Head of Credit Risk

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